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|    |                                                                                 | <p>287, 290.) In addition, Defendant’s request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendant’s request is denied.</p> <p>Plaintiff’s motion for fees is granted. Plaintiff is awarded \$33,354.50 in attorneys’ fees and \$2,246.28 in costs.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 3. | 2024-1403454<br>Giziotis vs.<br>Volkswagen<br>Group of America,<br>Inc.         | Trial motions to be ruled on at a later date.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 4. | 2024-1412353<br>Mitchell vs.<br>Carrasco                                        | Case Management Conference, only.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 5. | 2025-1529277<br>National<br>Funding, Inc. vs.<br>Golden<br>Construction,<br>LLC | <p>Plaintiff National Funding, Inc.’s motion for summary judgment on its complaint for breach of contract against defendants Charles Sanders and Golden Construction, LLC is denied.</p> <p>Defendant’s evidentiary objection to para. 3 and Ex. 2 of the Muren Declaration is sustained on hearsay grounds. The parties’ remaining objections are all overruled.</p> <p><u>Legal Standard</u></p> <p>Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1).</p> <p>“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” <i>Id.</i> For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty the parties must comply with Code of Civil Procedure section 437c(s)(1).</p> <p>A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal. 4<sup>th</sup> 826, 850. “A prima facie showing is one that is</p> |